

24PR00655 Guardianship of Luis Mauricio Rivera Hernandez

County: santa-barbara

Division: Guardianship

Department: 4 SM-Cook

Hearing date: 2026-07-06

Motion: Motion to Be Relieved as Counsel

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Tentative Ruling: Guardianship of Luis Mauricio Rivera Hernandez

Case Number

24PR00655

Case Type

Guardianship

Hearing Date / Time

Mon, 07/06/2026 - 08:30

Nature of Proceedings

Motion to Be Relieved as Counsel

Tentative Ruling

Probate Notes:

Appearances required.

No Proof of Service. There is no Proof of Service on file. The notice of motion and motion, the declaration, and the proposed order must be served on the client and on all other parties who have appeared in the case. The notice may be by personal service or mail. If the notice is served on the client by mail under Code of Civil Procedure section 1013, it must be accompanied by a declaration stating facts showing that either:

(1) The service address is the current residence or business address of the client; or

(2) The service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days before the filing of the motion to be relieved.

As used in this rule, "current" means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned is not, by itself, sufficient to demonstrate that the address is current. If the service is by mail, Code of Civil Procedure section 1011(b) applies.

Judges

Judge Jed Beebe

Dept. 4 SM-Cook

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